

Pradesh, courts in Rajasthan rarely ask for the police version. Instead, they tend to go by what is mentioned in the application, ignoring the possibility of these being manufactured facts. In reality, many such complainants had never approached the police in the first instance. The police and lawyers admit that courts are used as an instrument to settle scores, gain publicity or in pressure tactics in the same way the police is used for lodging false FIRs. No wonder then that 40 per cent of these end up being quashed as false. The accused, however, gets labelled for life as one who had a police case against him.

The percentage of cases filed through courts to the total FIRs registered has risen rather dangerously from less than 7 per cent in 2000 to 20 per cent in 2009. Director-General of Police H.C. Meena says in recent years (during BJP rule), there had been an attempt to bring a settlement between two factions through community liaison groups before lodging an FIR, which could have forced dissatisfied complainants and lawyers to move court instead. That also was a period when Congress sympathisers lodged cases with political overtones that got huge media attention, which in turn generated a statewide wave of using this section more and more. In 2003, when the Congress government exited, the number of cases was 16,187. The number soared during the BJP regime, doubling to 31,502 in 2007 with a dramatic 25 per cent increase from 2005 to 2006 alone, dipped a little in 2008 but rose by a record amount in 2009, the first year of the new Congress government.

Litigants are rarely using courts to lodge cases concerning serious crimes such as rape, murder, assault and dacoity, or even for vehicle and mobile phone thefts which the police often refuses to register. Instead, courts are mostly used for bank recoveries, disputes over property and tenancy, money borrowing and marital problems, including dowry and mental torture. "Once a loanee pays the dues, the case is withdrawn, often even before the criminal action begins," says B.L. Soni, inspector general of police, Jaipur. He, along with Jaipur Collector



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AJIT SINGH SHEKHAWAT, ADG, Rajasthan



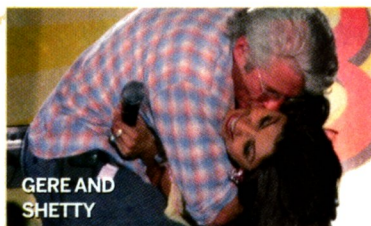
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AJAY JAIN, Advocate and former sessions judge

CASE-HAPPY NATION

Actor Shilpa Shetty had many cases filed against her for kissing Hollywood actor Richard Gere at a public function in 2007.



In 2007, a foreigner unintentionally placed his whisky glass on the national flag while watching a one-day cricket match in Jaipur. A court pulled up the police for saying that the main accused could not be traced. After a recent one-day match, however, national flags were seen lying in garbage. No case was filed this time.



Chief Minister Ashok Gehlot and his predecessor Vasundhara Raje face a case each for allotting land to trusts in which they were involved. In both cases, the land was never transferred to the allottee and was cancelled even before the cases were lodged.

Kuldeep Ranka, faces a case concerning a fire in a depot of the Indian Oil Company near Jaipur last year.

Theoretically and legally, registration of an FIR against someone is no proof of crime but it attracts social stigma as much as a conviction would. It creates hurdles in getting a job, passport, visa or even getting married. "A nexus of lawyers, lower level police officers, middlemen and nuisance makers have gained immense strength to exploit this relief in law," says Kanhya Lal Bairwa, ADG, police. A Rajasthan High Court judgement of March 2009 appears to encourage the trend. While up to June 17,700 cases were registered under this section, the second half saw more than 23,000 cases. That judgement, delivered by Justice R.S. Rathore, gave no option to a magistrate but to order registration of an FIR if an apparent cognizable offence is disclosed in an application for police investigation. Ajay Jain, advocate and a former sessions judge, says: "Courts are needed for FIRs against the powerful as police often dithers in such cases, but they can't have blanket powers."

"The police may verify facts before lodging an FIR in case of a doubt or even decline it citing reasons, but it can't be made a practice," says Ajit Singh Shekhawat, ADG, police. "Frequent usage of 156(3) needs further consideration," says G.S. Bapna, advocate-general of Rajasthan. Magistrates order FIRs but rarely prosecute the complainants in false cases. Till the people lodging such bogus cases are brought to book, courts will continue to be misused. And justice shall remain more than blind. ■